

MASTER SOFTWARE SERVICES & CLOUD SLA AGREEMENT

Governing Enterprise Cloud Deployment and SaaS Operations

SECTION 1: SCOPE OF SERVICES AND SOWs

1.1 The Vendor agrees to deliver cloud enterprise architecture, API integration, and automated monitoring services as specified in Statements of Work (SOWs) executed from time to time.

SECTION 2: SERVICE LEVEL AGREEMENT (SLA) & UPTIME GUARANTEE

2.1 **Uptime Target:** The Vendor guarantees a monthly Service Availability of not less than 99.9% uptime (excluding scheduled maintenance).

2.2 **Service Credits:** If monthly availability falls below 99.9%, the Client shall be entitled to a 10% credit against monthly fees. If availability falls below 99.0%, the Client shall receive a 25% credit and retain the right to terminate for material default.

SECTION 3: INVOICING AND PAYMENT TERMS

3.1 Invoices shall be raised monthly. Client shall pay all undisputed invoice amounts within thirty (30) days of receipt.

3.2 Overdue payments shall accrue interest at 1% per month following a 7-day written reminder.

SECTION 4: LIMITATION OF LIABILITY

4.1 **Aggregate Cap:** Except for breaches of confidentiality or gross negligence, neither party's cumulative liability under this Agreement shall exceed the total service fees actually paid by the Client in the twelve (12) months preceding the incident.

4.2 **Consequential Damages:** Neither party shall be liable for indirect, incidental, punitive, or loss of profits damages.

SECTION 5: ANNUAL AUDIT RIGHTS

5.1 Client or its certified independent auditor may inspect Vendor's security controls, ISO-27001 certifications, and data handling procedures once per calendar year upon fourteen (14) days prior written notice.

IN WITNESS WHEREOF, THE PARTIES HAVE DULY EXECUTED THIS MASTER AGREEMENT.